

**LAKES TREATMENT CENTER, INC. v
LAKE TULLOCH, LLC, et al**

21CV45585

PLAINTIFF’S MOTION FOR RESTORATION OF JURY TRIAL

This case stems from a property dispute between Plaintiffs The Lakes Treatment Center, Inc. (“LTC”) and Bernadette Cattaneo (“Cattaneo”) (collectively, “Plaintiffs”), and The Resort at Lake Tulloch, (“Resort”), Narullah Safdari (“Safdari”) and Odell Tristin (“Tristin”) (collectively, “Defendants”).

Plaintiffs move for relief from “inadvertent” waiver of right to jury trial (for failure to timely post jury fee deposit) and for an order granting a jury trial. Defendants have not filed any opposition.

Pursuant to Code of Civil Procedures section 631(f), a party waives trial by jury by “failing to timely pay the fee described in subdivision (b), unless another party on the same side of the case has paid that fee.” However, the court retains discretion to proceed with a jury trial even in the face of waiver. (Code Civ. Proc. §631(g); *TriCoast Builders, Inc. v. Fonnegra* (2024) 15 Cal.5th 766, 778–779.) When evaluating a request for relief from the failure to timely pay the deposit, a court properly considers equitable factors, including the reasons for the belated decision, closeness to trial, potential tactics at play and hardship. (*Id.* 784-785.) “Where the right to jury is threatened, the crucial focus is whether any prejudice will be suffered by any party or the court if a motion for relief from waiver is granted.” (*Wharton v. Superior Court* (1991) 231 Cal.App.3d 100, 104.)

Here, Plaintiff LTC originally filed this cause of action in 2021, while Cattaneo brought an arbitration through the American Arbitration Association pursuant to a clause in the relevant LLC operating agreement. Defendant Resort filed a cross-complaint against LTC and a separate action against Cattaneo based on a different alleged contract. The parties stipulated, and the Court agreed, to consolidate this matter with the other civil case and the associated arbitration. As a result, Cattaneo was added as a party to this action and Plaintiffs filed their Second Amended Complaint on August 16, 2023.

Plaintiffs’ counsel avers that it is his consistent practice to post jury fees to preserve his clients’ rights to a jury trial and that this is generally done by paralegals in his office. (Declaration of Zachary P. Young (“Young Decl.”) ¶ 3.) Mr. Young avers that he believed that his paralegal had in fact posted the jury fees as it was always Plaintiffs’ intent to request a trial by jury. (*Ibid.*) The first Case Management Statement filed by Plaintiffs

supports this as it clearly indicated the intent to have a jury by trial. (CMC dated Jan. 4, 2022.) Plaintiffs were unaware that the jury fees had not been paid until April 28, 2025, during a settlement conference. (Young Decl. ¶ 4.)

A jury trial appears to have been plaintiffs' original intention, as evidenced by the CMC statement, counsel's declaration, and also the declaration of Plaintiff Catteneo. The waiver appears to be "technical noncompliance" and defendant has fulfilled the core objective of the statute, which is to give timely notice that a jury is demanded. (*TriCoast Builders*, supra (2024) 15 Cal.5th 766, 782 – 783.) Defendants have not filed any opposition to this motion and the Court sees no hardship that outweighs Plaintiffs' right to a jury trial.

Accordingly, Plaintiffs' motion to restore jury trial is **GRANTED**. Plaintiffs must lodge their statutory jury fee deposit with the Court by 3:00 p.m. on August 1, 2025.

The clerk shall provide notice of this ruling to the parties forthwith. Counsel for Plaintiffs to submit a formal Order in compliance with Rule of Court 3.1312 in conformity with this Ruling.

WALKER v YADAV ENTERPRISES, INC., et al

23CV46729

PLAINTIFF'S MOTIONS TO COMPEL DISCOVERY

This matter involves a claim for sexual harassment and assault, as well as wage and labor violations, by Romei Walker ("Plaintiff") against Yadav Enterprises, Inc. ("Yadav"), Greenhorn Golf LLC ("Greenhorn"), Raymond Lee Warren ("Warren") and Elaine Offenbach ("Offenbach.")

Plaintiff has filed a motions to compel discovery against various defendants, each of which improperly combines multiple motions to compel into a single motion. Each of these motions should have been filed separately with separate filing fees. (*Dunbar v. Mir Fashion, LLC* (2025) 2025 Cal.Super.LEXIS 4391.) The Court has chosen to rule on the substance of these motions but Plaintiff is admonished that future failures to file separate motions may result in denial of the motion with prejudice.

Plaintiff also seeks sanctions. Plaintiff's attempted meet and confer efforts are sufficient.

The motions are unopposed.

I. Background Facts

Plaintiff began working at Defendants Greenhorn Creek in about August 2021 as an 23 Event Coordinator and Restaurant Supervisor. (Complaint ¶ 9.) Plaintiff alleges that Yadav is also her employer. Plaintiff was routinely subjected to sexual harassment by multiple employees, including line cook Warren. (*Id.* ¶ 11.) Plaintiff alleges that at different times she warned her employer that it should not hire or retain employees that engage in sexual harassment but was ignored. (*Ibid.*)

On about August 2, 2022, Defendants threw a party at which Plaintiff alleges she was told by a co-worker that the co-worker had been sexually assaulted by Warren. (*Id.* ¶ 18-20.) Apparently, Warren threatened to also sexually assault Plaintiff and when Plaintiff learned of this she was extremely concerned. (*Id.* ¶ 22-23.) On about August 4, 2022, Plaintiff returned to work and told the company's Sales & Marketing Director,